

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Priyam Madhukar Esq. declares facts under penalty of perjury to support the application under CRC Rule 9.40. The Court is satisfied that all requirements to appear as counsel pro hac vice in this matter appears to be met. Ms. Madhukar is not a resident of the state of California, nor is she a member of the California bar. (Rousso Decl. ¶ 4.) Ms. Madhukar, however, is a member in good standing and admitted to practice in the courts of Illinois in November 2024. Ms. Madhukar has never been suspended or disbarred from practice in any court. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is **granted**. Priyam Madhukar, Esq. is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order granting lodged with the Court on October 17, 2025. No appearance is required at the March 25, 2026 hearing.

The Court also sets-aside any order re-assigning this case to Hon. Julia Campins, Department 10, for all purposes. Any such order is entered by mistake. This case remains in Department 16. The Clerk of the Court is ordered to enter and served a minute order to all counsel by e-mail.

23. 9:00 AM CASE NUMBER: N25-2112

CASE NAME: AMAN POHYAR VS. IBRAHIM SHARIFF

***HEARING ON MOTION IN RE: REQUESTING THE ABOVE ENTITLED CASE UNDER COMPLAINT FOR EVICTION SET UP FOR COURT HEARING**

FILED BY: POHYAR, AMAN

TENTATIVE RULING:

See Tentative Ruling, Line No. 7, above.

24. 9:01 AM CASE NUMBER: C22-00742

CASE NAME: PHILIP FERREIRA VS. WILLIAM MYERS

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO AND COMPLIANCE WITH REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: BARABI, MINOU

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 24 and 25. Cross Defendant and Cross-Complainant Minou Barabi (“Barabi”) filed two discovery motions against the Cross-Complainants and Cross Defendants Philip and Crystal Ferreira (“Ferreiras”), which are set for hearing on March 25, 2026:

1. Motion to Compel Further Responses and Compliance with Request for Production of Documents, Set One, Nos. 9, 12, 22 through 29, 31, 32, as well as a production of documents, and an order compelling the Ferreiras’ compliance with their responses to produce responsive documents to Barabi’s Request Nos. 43, 46 through 50, filed on November 18, 2025; and
2. Motion to Compel the Ferreiras to provide Further Responses to Special Interrogatories, Set One, Nos. 20 through 31, filed on November 18, 2025.

As set forth in its ruling below the Court **grants**, in part, and **denies**, in part both motions.

Background

This case alleges disputes between Plaintiffs Ferreiras and their neighbors Defendants William and Fran Myers (“Myers”), which include alleged real property damage that dates back to 2020. The Ferreiras and the Myers were the original parties to this lawsuit – asserting claims and cross-claims – for two years before the Ferreiras filed a cross-complaint for indemnity and contribution against Barabi, an adjacent neighbor. In March 2025, Barabi filed an answer and her cross-complaint against the Ferreiras and another neighbor. Also in March 2025, the Montair Property Owners’ Association filed a separate lawsuit in this Court (Case No. C25-00704, which remains pending) against the Ferreiras for breach of the governing documents, nuisance and declaratory relief.

On May 8, 2025, Barabi served her first set of written discovery on the Ferreiras, addressing the multiple claims at issue in this lawsuit. Since the Ferreiras requested several extensions of time to respond, it was not until August 21 and 22, 2025, that the Ferreiras served their written responses. Then, the Ferreiras’ counsel produced documents on a “rolling basis” from September 8 to October 6, 2025. Barabi’s counsel claims that in response to Barabi’s Request for Production Nos. 9, 12 through 29, 31 and 32, the Ferreiras stated only groundless objections and no substantive responses. In addition, they did not produce responsive documents as committed by their responses to Request for Production Nos. 43, and 46 through 50.

Ms. Barabi also served Special Interrogatories on May 8, 2025. After several extensions granted to the Ferreiras, Barabi received responses to Special Interrogatories Nos. 20 through 31 which she claims contains only meritless objections without substantive responses.

Despite Barabi’s several meet and confer attempts since August 2025, the Ferreiras have not agreed to resolve these discovery disputes. Therefore, Barabi must bring this motion to obtain responses

and a complete production, which are necessary for Barabi to defend against the Ferreiras' claims against her, as well as for Barabi to address the claims in her cross-complaint. Barabi filed these two discovery Motions on November 18, 2025. The Motions were supported by Memorandum of Points and Authorities, Separate Statement and Declaration of Allison Beanum.

The Ferreiras, through Counsel, filed timely oppositions to both motions. The Ferreiras claim that, in response to Barabi's request for production of documents, they have produced hundreds of responsive photos and videos contained in a 24 gigabyte digital production, and several responsive documents. They also assert that the scope of the requests were broad, and there was no effort to determine whether Ferreiras' production satisfied the requests. Similarly, for the interrogatories, the Ferreiras claim that Barabi's interrogatories were overbroad, burdensome, sought privileged communications, and did not recognize the responses already produced. The opposition was supported by Memorandum of Points and Authorities, Separate Statement and Declaration of Jack Klauschie.

In reply, Barabi claims that the Ferrerias improperly attempt to limit the scope of their discovery responses to the cross-complaint they maintain against her, and have otherwise failed to provide responses requested.

Analyses

First, Counsel are admonished that this Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed Cal CEB) §15.38.6.

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion

regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119.

The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

In exercising its discretion in ruling on discovery motions, the trial court relies on the Civil Discovery Act and the legislative purpose of avoiding surprise and preventing fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in discovery practice in California has been in place for over sixty years. The California Supreme Court in the seminal case of *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remain applicable today. "That is, the Legislature intended to take the "game" element out of trial preparation while yet retaining the adversary nature of the trial itself. One of the principal purposes of discovery was to do away "with the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, 54 Cal.2d 548, 561. See also page 572 of the same opinion wherein we adopted from *United States v. Proctor & Gamble Co.*, 356 U.S. 677, the phrase that discovery tends to "make a trial less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer and pursue a reasonable and good faith attempt to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. ("CCP") §§ 2016.040, 2030.300, *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court's local rules states that motions "should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved." L.R. 2.122(c).

Here, the record submitted to the Court shows counsel exchange several communications and video meetings to attempt to resolve the outstanding issues. The Court finds that Counsel have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

Interrogatories

The grounds set forth in CCP §§ 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are "incomplete or evasive," or an "objection to an interrogatory is without merit or too general." When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. CCP § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court*, *supra*, 22 Cal.4th 245, 255.

If a responding party does not have documents in response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (CCP §§ 2031.310(a)(2) and 2031.230). Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also CCP. §§ 2023.010(e),(f) and (h), and CCP §§ 2030.210, 2030.220 (b)(c). It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Attorney Client or Work Product Privilege Doctrines

If a responding party seeks to assert the Attorney Client Privilege or Work Product Doctrine Privilege, it shall provide a privilege log specifying in detail each document being withheld, the date of the document, the author, and what privilege applies. (CCP§ 2031.240(c)(1). If Counsel objects based on this privilege, Counsel must produce a privilege log

After considering the moving papers, including the declarations submitted to the Court, the arguments of Counsel, and after applying the relevant statutory and decisional authorities, the Court

makes the following findings and orders.

Ruling

1. The Court rules on Barabi's Motion to Compel Further Response to Request for Production of Documents, Set One, 9, 12 through 29, 31 and 32 , and 43, 46-50 as follows:

No. 9: **Granted** in Part. **Denied** in Part. Ferrerias objection based on the attorney client privilege is **sustained**. While attorney's fees and cost bills are privileged, the legal bases for seeking attorney's fees is not. Ferrerias shall produce further responses, redacting any communications protected by the privilege.

No. 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 23, 24, 25, 26, 27, 28, 29, 31, 32, 46, 48 and 50. **Granted**. The objections are **overruled**. As defined, the term "Work, " is not ambiguous. The other definitions stated in the request are not vague, or ambiguous. Ferrerias shall produce further responses. If Ferrerias produced every document that is responsive to this request, then it should say so in a further verified response. . If the Ferrerias do not have any documents responsive to these requests, then it should file a further verified response with (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control or the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item pursuant to Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. It is unacceptable to prepare a response that does not comply with this provision of the Discovery Act.

No. 22. **Denied**. The request, seeking "All COMMUNICATIONS from January 1, 2020 to the present between YOU or anyone on YOUR behalf on the one hand, and BARABI or anyone on her behalf on the other hand regarding any of the PROPERTIES" is too vague, overbroad and potentially seeks irrelevant information. The objections are sustained. No further response is warranted.

No. 43, 47 and 49. **Granted** in part. **Denied** in part. The attorney client and/or work product privileges are **sustained**. The objections based on the attorney client privilege require the production of a privilege log. Ferrerias shall produce a detailed privilege log listing a general description of each document that is responsive to the request, which is being withheld by Counsel due to privilege, the number of pages it contains, and the privilege that is asserted pursuant to Cal. Code of Civ. Proc. § 2031.240(c)(1). All other documents that are not privileged shall be produced, redacting any privileged communications.

If Ferrerias produced every document that is responsive to this request, then it should say so in a further verified response. If the Ferrerias do not have any documents responsive to these requests, then it should file a further verified response with (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control or the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or

control of the item or category of the item pursuant to Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. It is unacceptable to prepare a response that does not comply with this provision of the Discovery Act.

2. The Court rules on Barabi's Motion to Compel the Ferreiras to provide Further Responses to Special Interrogatories, Set One, Nos. 20 through 31, filed on November 18, 2025, as follows.

No. 20, 21, 22, 23, 24, 25, 26, 27, 28, 29, 30 and 31 . **Granted**. The objections are **overruled**, with the exception of any objections based on the attorney client privilege and the work product doctrine, which are **sustained**. As defined, the term "Work," is not ambiguous. The other definitions stated in the request are not vague, or ambiguous. Ferreiras shall produce further answers to these interrogatories. . Granted. The objections are overruled. As defined, the term "Work," is not ambiguous. The other definitions stated in the request are not vague, or ambiguous. Ferreiras shall produce further responses, and shall redact any privileged communications. If Ferrerias produced every document that is responsive to this request, then it should say so in a further verified response. Ferreiras are not required to produce further answers that would breach the attorney client privilege.

3. Time for responses. All further responses to request for production of documents and interrogatories shall be produced no later than fifteen (15) days from the date of this order and shall be verified.
4. Barabi's counsel shall prepare a proposed order conforming to this ruling no later than ten (10) days from the date of this hearing, attaching a copy of this tentative ruling.
5. Each party to bear their own attorney's fees and costs in prosecuting and/or defending against these motions.
6. The Court reserves the option of referring further discovery motions to a discovery referee.

25. 9:01 AM CASE NUMBER: C22-00742
CASE NAME: PHILIP FERREIRA VS. WILLIAM MYERS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE**
FILED BY: BARABI, MINOU
TENTATIVE RULING:
See Tentative Ruling on Line No. 24, above.

26. 9:01 AM CASE NUMBER: C22-01790
CASE NAME: KATHERINE STAUDT VS. DOES 1 TO 50
***HEARING ON MOTION FOR DISCOVERY TERMINATING SANCTIONS AGAINST PLAINTIFF**
FILED BY: PUREMIST CORPORATION
TENTATIVE RULING:
Summary

Defendant Puremist Corporation's ("Puremist") Motion for Terminating Sanctions against Plaintiff Katherine J. Staudt ("Plaintiff") is **granted** as set forth herein.